



POLICE DEPARTMENT

August 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301786 (Incident Date: February 21, 2023) regarding Sergeant Sadique Cottlehaddaway, Tax No. 966005 (DADS No. 2024-30943)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301786, pertaining to Sergeant Cottlehaddaway. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Cottlehaddaway would be detrimental to the Police Department's disciplinary process.

After reviewing the facts and circumstances of the case, the Police Commissioner agrees with the CCRB's determination to substantiate the allegations. However, the Police Commissioner disagrees with CCRB's application of the Department's Disciplinary Penalty Guidelines. The Police Commissioner has determined that Charges and Specifications are not the appropriate form of discipline. The Police Commissioner has determined to use the presumptive penalties for the misconduct, and run them concurrently. Sergeant Cottlehaddaway, in his six years of service, has had no formal discipline, no prior substantiated CCRB complaints, is rated well above standards, and has been evaluated as performing exceptionally over the last few years.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Sergeant Cottlehaddaway a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the stop and frisk allegation

and the forfeiture of three (3) vacation days for the refusal to provide command and shield number allegation, for a combined total of six (6) vacation days.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 7, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301786 (Incident Date: February 21, 2023) regarding Sergeant
Sadique Cottlehaddaway, Tax No. 966005 (DADS No. 2024-30943)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, August 2, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against Sergeant Cottlehaddaway would be detrimental to the Police Department's disciplinary process. Deputy Chief Marino stated that you agreed with the CCRB's determination to substantiate the allegations but believe that Charges and Specifications are not the appropriate form of discipline. Instead, you intend to issue Sergeant Cottlehaddaway a Schedule "B" Command Discipline with the forfeiture of six (6) vacation days.

The CCRB disagrees with your intention to not pursue charges against Sergeant Cottlehaddaway. The evidence in this case, including body-worn camera, shows Sergeant Cottlehaddaway unlawfully stopping and frisking a civilian. Additionally, it shows that Sergeant Cottlehaddaway failed to provide his command assignment and shield number to the civilian, despite this information being specifically requested of him.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, it is requested that you permit the requested Charges and Specifications to be served upon Sergeant Cottlehaddaway.

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'JD' or similar, written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 8, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301786 (Incident Date: February 21, 2023) regarding Sergeant Sadique Cottlehaddaway, Tax No. 966005 (DADS No. 2024-30943)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 7, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Sadique Cottlehaddaway, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Cottlehaddaway for the reasons expressed in my August 2, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Sergeant Cottlehaddaway be issued a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the stop and frisk allegation and the forfeiture of three (3) vacation days for the refusal to provide command and shield number allegation, for a combined total of six (6) vacation days.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office